

State of Minnesota**District Court**

County of Hennepin	Judicial District: <u>Fourth</u>
	Court File Number: <u>27-CV-26-11606</u>
	Case Type: <u>Contract</u>

Yibiao Lu and Jie Hu

Plaintiff (first, middle, last)

vs.

Fire Insurance Exchange, by and through its attorney-in-fact,
Fire Underwriters Association (d/b/a Farmers Insurance)

Defendant (first, middle, last)

**Civil Cover Sheet
(Non-Family Case Type)**

Minn. Gen. R. Prac. 104

Date Case Filed: July 8, 2026 — see Att. A, ¶ A

This civil cover sheet must be filed by the initial filing lawyer or party, if unrepresented by legal counsel, unless the court orders all parties or their legal counsel to complete this form. Once the initial civil cover sheet is filed, opposing lawyers or unrepresented parties who have not already been ordered to complete this form may submit their own cover sheet within 7 days after being served with the initial cover sheet. See Rule 104 of the General Rules of Practice for the District Courts.

If information is not known to the filing party at the time of filing, it shall be provided to the Court Administrator in writing by the filing party within 7 days of learning the information.

Any party impleading additional parties shall provide the same information to the Court Administrator. The Court Administrator shall, upon receipt of the completed certificate, notify all parties or their lawyers, if represented by counsel, of the date of filing the action and the file number assigned.

ATTORNEY FOR PLAINTIFFNone — Plaintiffs are self-represented (see page 2)

Attorney Name (not firm name)

N/A

Postal Address

N/A

City

State

Zip Code

N/A

Telephone Number

N/A

E-mail Address

N/A

Minnesota Attorney ID Number

ATTORNEY FOR DEFENDANTKevin J. Kennedy; Mary J. Baskfield

Attorney Name (not firm name)

7616 Currell Blvd., Suite 270

Postal Address

Woodbury

City

MN

State

55125

Zip Code

651-256-5000

Telephone Number

kkennedy@kennedyllf.com; mbaskfield@kennedyllf.com

E-mail Address

193872 (Kennedy); 0314572 (Baskfield) — see Att. A, ¶ B

Minnesota Attorney ID Number

PLAINTIFF, Self-represented

Yibiao Lu and Jie Hu
Name

17756 George Moran Dr.
Postal Address

Eden Prairie MN 55347
City State Zip Code

763-843-2859 (Lu); 763-843-2860 (Hu)
Telephone Number

bill_y_lu@yahoo.com; jie_h_hu@yahoo.com
E-mail Address

DEFENDANT, Self-represented

N/A — represented by counsel (see page 1)
Name

N/A
Postal Address

N/A
City State Zip Code

N/A
Telephone Number

N/A
E-mail Address

(Attach additional sheets for additional attorneys / parties)

Note: If either Plaintiff or Defendant gets an attorney, the attorney's name, address, telephone number and attorney ID number must be given in writing to the Court Administrator immediately.

1. Provide a concise statement of the case including facts and legal basis:

First-party property insurance coverage action. Plaintiffs' Eden Prairie home was damaged by hail and wind on July 13, 2024.

Defendant, the insurer under Plaintiffs' homeowner's policy, denied the claim on September 3 and November 4, 2024. Claims:

breach of the policy; declaratory judgment under Minn. Stat. ch. 555, including as to the effect of the September 12, 2025 appraisal

award; and Minnesota Consumer Fraud Act. Jury trial demanded. See Attachment A, ¶ 1.

2. Date Complaint was served: July 1, 2026 — see Att. A, ¶ 2

3. For Expedited Litigation Track (ETLT) Pilot Courts only:

a. ☐ The parties jointly and voluntarily agree that this case shall be governed by the Special Rules of ELT Pilot. Date of agreement: N/A

b. ☐ The court is requested to consider excluding this case from ELT for the following reasons:

Not applicable. The Court issued a Scheduling Order on September 8, 2026 under Minn. Gen. R. Prac. 111 setting a
standard-track schedule. Plaintiffs neither request ELT treatment nor seek an ELT exclusion. Items 3.c–3.f are answered
for the Court's convenience only. See Attachment A, ¶ 3.

Note: ELT is mandatory in certain cases, and where mandatory, exclusion may also be sought by timely motion under the Special Rules for ELT Pilot.

services become necessary for any party or witness.

12. Issues in dispute:

(1) Whether the July 13, 2024 hail and wind event damaged the residence, and the scope and cost of that damage; (2) the effect of the September 12, 2025 appraisal award, which was not itemized as Minn. Stat. § 65A.01 requires; (3) application of the wind/hail deductible; (4) the adequacy of Defendant's investigation and its two denials; (5) the Consumer Fraud Act claims; (6) Defendant's asserted lack of jurisdiction; and (7) damages. See Attachment A, ¶ 12.

13. Case Type/Category: Contract (NOTE: select case types from the Civil Case Type Index found at http://www.mncourts.gov/mncourtsgov/media/scao_library/documents/eFile%20Support/Handout-Case-Type-Index.pdf.)

14. Recommended Alternative Dispute Resolution (ADR) mechanism: Mediation (non-binding)
(See list of ADR processes set forth in Minn. Gen. R. Prac. 114.02(a))

Recommended ADR provider (known as a "neutral") To be agreed — see Attachment A, ¶ 14

Recommended ADR completion date: June 1, 2027 (Scheduling Order ¶ 6)

If applicable, reasons why ADR not appropriate for this case:

Not applicable — ADR is appropriate and has been ordered. Mediation must be completed by June 1, 2027, and the parties must notify the Court of an agreed neutral and a mediation date by October 27, 2026.

By signing below, the attorney or party submitting this form certifies that the above information is true and correct.

Submitted by:

Signature

Name: Yibiao Lu (see also Attachment A signature page)

Attorney Reg. #: N/A — self-represented

Firm/Agency Name: N/A — self-represented

Street Address: 17756 George Moran Dr.

City/State/Zip Code: Eden Prairie, MN 55347

Telephone: 763-843-2859

Date: _____

STATE OF MINNESOTA
COUNTY OF HENNEPIN

DISTRICT COURT
FOURTH JUDICIAL DISTRICT
Case Type: Contract

Yibiao Lu and Jie Hu,
Plaintiffs,

Court File No. 27-CV-26-11606
Judge: Hon. Jamie L. Anderson

v.

Fire Insurance Exchange, by and through its
attorney-in-fact, Fire Underwriters
Association (d/b/a Farmers Insurance),
Defendant.

**ATTACHMENT A TO PLAINTIFFS’
CIVIL COVER SHEET**
(Minn. Gen. R. Prac. 104; Form CIV117)

This Attachment supplements Plaintiffs’ Civil Cover Sheet (Form CIV117) filed herewith. Lettered paragraphs correspond to entries on page 1 of the form; numbered paragraphs correspond to the numbered items on the form.

A. Date case filed. This action was commenced by filing on **July 8, 2026**. On July 13, 2026 the Court Administrator issued a Notice of Noncompliance under Minn. Gen. R. Prac. 11, and on July 20, 2026 Plaintiffs filed a corrected Complaint with restricted identifiers redacted, together with a motion under Minn. Gen. R. Prac. 11.05 to deem the corrected Complaint filed as of July 8, 2026. That motion remains pending.

B. Counsel of record for Defendant. Kennedy Law Firm P.C., 7616 Currell Blvd., Suite 270, Woodbury, MN 55125; telephone 651-256-5000. Kevin J. Kennedy (#193872), kkennedy@kennedyllf.com; Mary J. Baskfield (#0314572 as stated in the Notice of Appearance filed July 28, 2026), mbaskfield@kennedyllf.com.

1. Concise statement of the case. Plaintiffs own and reside at 17756 George Moran Dr., Eden Prairie, Minnesota, insured under a homeowner’s policy underwritten by Defendant Fire Insurance Exchange. On July 13, 2024 a hail and wind event damaged the property. Defendant denied the claim by letters dated September 3, 2024 and November 4, 2024. An appraisal award issued September 12, 2025. The Complaint pleads: (i) breach of the insurance contract; (ii) declaratory judgment under Minn. Stat. ch. 555, including a declaration that the September 12, 2025 appraisal award — which was not itemized as Minn. Stat. § 65A.01 requires — does not preclude the contract claim as to items the award did not itemize, and in the alternative modification or vacatur of the award; and (iii) violations of the Minnesota Consumer Fraud Act, Minn. Stat. §§ 325F.69 and 325F.70, subd. 3, brought under Minn. Stat. § 8.31, subd. 3a. Plaintiffs demand a trial by jury.

2. Date Complaint was served. The Summons and Complaint were served on the Commissioner of Commerce by certified mail on July 1, 2026, as substituted service under Minn. Stat. § 45.028, and a copy was mailed to Defendant at its last known address. Plaintiffs filed the Affidavit of Compliance on July 8, 2026. Defendant has taken the position that service became effective under § 45.028, subd. 2 upon that filing, and the Court’s July 28, 2026

Order Enlarging Time for Answer proceeded on that footing. The corrected Complaint was separately served on July 20, 2026 by certified mail on Defendant's registered agent, Corporation Service Company. Plaintiffs state these dates for the Court Administrator's record and take no new position here.

3. **Expedited Litigation Track.** Plaintiffs do not request that this case be governed by the Special Rules of the ELT Pilot, and do not request exclusion from ELT. The Court entered a Scheduling Order and Order to Mediate on September 8, 2026 under Minn. Gen. R. Prac. 111, which sets a standard-track schedule with all discovery to be completed by March 15, 2027 and a trial block of September 20 – October 22, 2027. Items 3.c through 3.f are answered on the form for the Court's convenience only. There are no medical expenses or lost wages at issue; this is a first-party property claim.
4. **Complex case.** Plaintiffs do not contend this is a "complex case" under Minn. Gen. R. Prac. 146.02(a). The action involves two parties, one insurance policy, and one loss date, and is not within any category provisionally designated complex by Rule 146.02(c). No CCP Election has been filed.
5. **Estimated discovery completion.** Six months from the date of this form. The Scheduling Order ¶ 2 requires all discovery to be completed by March 15, 2027.
6. **Disclosure and discovery of electronically stored information.** The parties held the Minn. R. Civ. P. 26.06 conference on August 28, 2026 and were unable to agree on a joint discovery plan; each filed a proposed plan (Defendant's on September 1, 2026, Plaintiffs' on September 4, 2026). As to ESI:
 - (a) **Agreed.** Both parties state that relevant documents and electronically stored information will be preserved and retained.
 - (b) **Not agreed — form of production.** Plaintiffs proposed production in native format with metadata intact, or another reasonably usable agreed form, with searchability and metadata not degraded and no flattening or printing to image. This matters particularly to the photographs taken at the three inspections of the property. Defendant's proposed plan specifies no form of production.
 - (c) **Not agreed — privilege.** Plaintiffs proposed a privilege log under Minn. R. Civ. P. 26.02(f) and a non-waiver and claw-back agreement entered as a court order. Defendant's plan states only that the parties will follow Rule 26.
 - (d) **Not agreed — confidentiality.** Plaintiffs proposed a single-tier CONFIDENTIAL protective order with no attorneys'-eyes-only tier, on the ground that Plaintiffs are self-represented and such a designation would bar them from evidence in their own case.

The September 8, 2026 Scheduling Order does not address subparagraphs (b), (c), or (d). Plaintiffs intend to seek a stipulated ESI, privilege claw-back, and protective order, and to bring the matter to the Court under ¶ 4 of the Scheduling Order if the parties cannot agree.
7. **Proposed trial start date.** September 20, 2027, the opening of the trial block set by ¶ 8 of the Scheduling Order (September 20 – October 22, 2027).

8. **Estimated trial time.** Four to five trial days.
9. **Jury trial.** Demanded by both parties — by Plaintiffs in the Complaint and by Defendant in its Answer filed August 10, 2026.
10. **Rule 35 examination.** None requested.
11. **Interpreter services.** None presently identified. Plaintiffs will promptly notify the Court and opposing counsel in writing if interpreter services become necessary for any party or witness.
12. **Issues in dispute.** (i) Whether the July 13, 2024 hail and wind event damaged the residence and its components, and the scope, extent, and cost of that damage, including components the appraisal panel did not evaluate; (ii) whether the September 12, 2025 appraisal award — which was not itemized as Minn. Stat. § 65A.01 requires — binds the parties or precludes the contract claim as to items it did not itemize, and whether it should be modified or vacated; (iii) the application of the wind and hail deductible to any covered loss; (iv) whether Defendant’s investigation and its September 3, 2024 and November 4, 2024 denials breached the policy; (v) Plaintiffs’ claims under the Minnesota Consumer Fraud Act; (vi) Defendant’s first affirmative defense asserting a lack of jurisdiction over Fire Insurance Exchange, and the identity and capacity of the contracting entity; and (vii) the amount of damages, costs, and disbursements.
13. **Case type / category.** Contract (Major Civil — Contract). Minnesota’s Civil Case Type Index contains no separate “insurance” case type; the gravamen of the action is breach of the insurance contract. The case has been captioned “Case Type: Contract” since filing.
14. **Alternative dispute resolution.** Plaintiffs recommend **non-binding mediation**, a facilitative process under Minn. Gen. R. Prac. 114.02(c)(1). Plaintiffs have no neutral to propose at this time and recommend a neutral experienced in first-party property insurance coverage or construction-defect disputes. Paragraph 6 of the Scheduling Order requires the parties to notify the Court in writing of an agreed neutral and a mediation date by October 27, 2026, and requires mediation to be completed by June 1, 2027.

Dated: _____, 2026.

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